Harris County District Court

Cause No. 2024-CV-0017

Amber Perry, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-26-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant responds to Plaintiff's Original Petition as follows.

General Denial. Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strcit proof thereof by a preponderance of the evidence.

Affirmative Defenses. Without assuming any burden of proof that it would not otherwise bear, Defendant asserts the following defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to conrtol speed, and failed to maintain a safe following distance. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may recover nothing if that percentage exceeds ffity percent.

Second, the collision and any claimed ijnuries were caused in whole or in part by the acts or omissions of a third party or persons over whom Defendant had no control, and Defendant requests that the responsible parties be designated under Section 33.004.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by delaying necessary treatment. Any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.